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CASE #	CASE NAME	HEARING NAME
CVRI2604182	HASTINGS vs MIRAGE ENDOSCOPY CENTER, LLC	MOTION TO CONSOLIDATE

Tentative Ruling: Grant; no opposition.

5.

CASE #	CASE NAME	HEARING NAME
RIC2002687	BOREL vs SOUTHERN CALIFORNIA GAS COMPANY	MOTION TO TAX COSTS (X3)

Tentative Ruling:

In this consolidated action, various plaintiffs sued multiple defendants, including Southern California Gas Company. On April 21, 32026, the court denied SCGC's motion for summary judgment and denied summary adjudication of the negligence cause of action. The Court granted summary adjudication as to property damage claims of non-owner plaintiffs, as to the negligent infliction of emotional distress cause of action as to those plaintiffs who did not suffer bodily injuries, and as to the public nuisance cause of action for those plaintiffs who did not establish a "special injury" distinct from that suffered by the general public. Judgement was entered on April 24, 2026, against plaintiffs Karen McKinney, Alejandro Melgoza, Sr., Adriana Duran-Melgoza, Elizabeth Melgoza, Kaiden Villanueva, Cathlyn Villanueva, and Deren Villanueva. SCGC filed a memorandum of costs on May 8, 2026, claiming \$65,250.46. The memorandum seeks: (1) filing and motion fees of \$2,261.20; (2) deposition costs of \$53,387.41; (3) court reporter fees of \$1,275.00; (4) subpoena costs of \$4,411.85; and (5) mediation costs of \$3,915.00.

The parties against whom costs are claimed filed a motion to tax on June 9, 2026, just less than two weeks after the deadline. They seek relief under *California Code of Civil Procedure* § 473(b), arguing that there was an internal calendaring error and that this constitutes excusable neglect. They move to strike or to tax costs on several grounds. First, they argue that SCGC is not a prevailing party because it is still a defendant in the case which is set for trial in a few months. Second, they argue that the costs were for defending the entire action and would have been incurred regardless of the causes of action that were summarily adjudicated. Further, they argue that even if some costs are recoverable, SCGC has not adequately supported the costs it claims and that some are non-recoverable, such as deposition costs for percipient witnesses, plaintiffs in related consolidated cases, an expert, who remains designated for trial, the McKinney plaintiffs themselves as percipient witnesses for other plaintiffs' alleged damages, the cost of video recording deposition testimony, which was unnecessary, subpoena costs, and mediation costs.

SCGC argues that the moving plaintiffs failed to show that the failure to timely file the motion was the result of excusable neglect and that relief is unwarranted because a reasonably prudent attorney would not have missed the deadline by nearly two weeks. On the merits, SCGC argues it is a prevailing party as to the moving parties regardless of the remaining claims of other plaintiffs, that overlap with related, consolidated cases does not defeat recovery of costs, and that all of the challenged costs are reasonable, necessary, and properly documented.

Legal Standard. A prevailing party is entitled as a matter of right to recover costs unless a statute provides otherwise. *Cal Civ. Proc. Code* § 1032(b). If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonably necessary. *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266. When a party disputes specific costs claimed in a memorandum of costs, the trial court has the obligation to review the supporting documents and the basis of the party's challenge to each specific item of costs. *Acosta v. SI Corp.* (2005) 129 Cal.App.4th 1370, 1380. Once cost items are objected to, it is incumbent upon the party claiming costs to provide sufficient detail of the expenditures and an explanation of the need and reason for the costs. *Jones, supra*, 63 Cal.App.4th at 1266. All costs awarded, even costs specifically allowed under *California Code of Civil Procedure* § 1033.5(a), must be both reasonably necessary and reasonable in amount. *El Dorado Meat Co. v. Yosemite Meat & Locker Serv., Inc.* (2007) 150 Cal.App.4th 612, 616. Otherwise, they are not recoverable. *Id.*

Relief for the Untimely Filing of the Motion. Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum, plus an additional five (5) days if served by mail or two (2) days if served electronically. *Cal. R. of Ct.*, Rule 3.1700(b)(1). “After the time has passed for a motion to strike or tax costs or for determination of that motion, the clerk must immediately enter the costs on the judgment.” *Id.*, Rule 3.1700(b)(4). A party’s failure to timely file a motion to tax costs “is deemed to have assented to the correctness and lawfulness of the items as claimed in the verified memorandum of costs as filed, the total of which, upon being entered in the judgment by the clerk in accordance with his duty, is of the same force and effect as any other part of the judgment.” *Davis Lumber Co. v. Hubbell* (1955) 137 Cal.App.2d 148, 150.

Here, the statutory deadline to file a motion to strike or tax costs was May 28, 2026.¹ (Harper Decl. ¶ 5.) The motion was filed on June 9, 2026, nearly two weeks late. Moving parties seek discretionary relief under section 473(b) for mistake, inadvertence, or excusable neglect. The test is whether a reasonably prudent person under the same or similar circumstances might have made the same error. The moving parties attribute the mistake to a new legal assistant failing to calendar the deadline. The error was

¹ The May 28, 2026, deadline reflects the 15-day period under Rule 3.1700(b)(1), extended two court days for electronic service under *California Code of Civil Procedure* § 1010.6(a)(3)(B), with the intervening weekend and Memorial Day holiday rolled forward under *California Code of Civil Procedure* § 12a. Moving Parties’ declaration identifies the deadline as May 27, 2026, (Van der Zee Decl. ¶ 4), possibly reflecting a different order of applying the section 12a extension. The one-day discrepancy is immaterial because the motion was untimely under either date.